

Avanish Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 October 2025 · Writ-C No. 33336 of 2025 · **Writ disposed of; petitioner relegated to statutory remedy**

HEADNOTE

A writ confined to a consequential demand notice cannot be entertained while the primary order under Section 135 of the Electricity Act, 2003 remains unchallenged. Adequate statutory remedy exists under the Act read with the U.P. Electricity Supply Code, 2005; Article 226 interference declined.

FACTUAL SUMMARY

The petitioner challenged a demand notice dated 20 September 2024 issued by respondent no. 3 of the distribution corporation. At the hearing, counsel for the corporation objected that the demand had been raised pursuant to an order under Section 135 of the Electricity Act, 2003, and that no relief could be granted against the consequential recovery while that primary order remained unchallenged. The writ attacked only the recovery communication.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s135-consequential-demand-notice

HOLDING

Unless the primary order creating a Section 135 demand is challenged, a writ limited to the consequential recovery notice cannot be considered. The consumer has an adequate statutory remedy under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005; Article 226 interference is declined, without prejudice if that remedy is availed within three weeks. ¶ 3-4

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy

A writ confined to a consequential demand notice cannot be entertained while the primary order under Section 135 of the Electricity Act, 2003 remains unchallenged. Adequate statutory remedy exists under the Act read with the U.P. Electricity Supply Code, 2005; Article 226 interference declined. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 20.09.2024 DEMAND NOTICE AND OF THE UNDERLYING SECTION 135 ORDER

Merits of the recovery were not examined because the primary order was not under challenge. ¶ 3-4